Official Journal
of the European Union

EN
L series

2026/1119

1.9.2026

COMMISSION DELEGATED REGULATION (EU) 2026/1119

of 26 May 2026

supplementing Regulation (EU) 2024/3005 of the European Parliament and of the Council with regard to regulatory technical standards specifying the information to be included in the application for authorisation as an ESG rating provider and in the application for recognition of an ESG rating provider

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2024/3005 of the European Parliament and of the Council of 27 November 2024 on the transparency and integrity of Environmental, Social and Governance (ESG) rating activities, and amending Regulations (EU) 2019/2088 and (EU) 2023/2859 ([1]), and in particular Article 6(3), third subparagraph, and Article 12(9), third subparagraph, thereof,

Whereas:

(1) In accordance with the general objectives of Regulation (EU) 2024/3005, in particular to enhance transparency and reliability regarding the operations of ESG rating providers, it is appropriate that this Regulation ensures that the information to be submitted to the European Securities and Markets Authority (ESMA) for the purposes of the authorisation and recognition processes of ESG rating providers is sufficient for enabling ESMA to make relevant informed decisions.

(2) The regulatory technical standards to be adopted on the basis of the empowerments laid down in Article 6(3), third subparagraph, and Article 12(9), third subparagraph of Regulation (EU) 2024/3005 should be bundled into a single Commission Delegated Regulation to ensure that all provisions specifying authorisation, registration and recognition of ESG rating providers are consolidated into one Regulation.

(3) Information submitted to ESMA may contain information on the identity of the contact person, of the senior management or of the legal representative of an applicant ESG rating provider, as well as of analysts, employees and other persons directly involved in ESG rating activities. Such information includes personal data. In compliance with the principle of data minimisation enshrined in Article 4(1), point (c), of Regulation (EU) 2018/1725 of the European Parliament and of the Council ([2]), only personal data that is necessary to enable ESMA to assess the compliance of the application for authorisation as an ESG rating provider or for recognition of an ESG rating provider with the requirements laid down in Regulation(EU) 2024/3005 should be requested.

(4) This Regulation respects the fundamental rights and observes the principles recognised by the Charter of Fundamental Rights of the European Union, and notably the right to protection of personal data. The processing of personal data for the purposes of this Regulation should be carried out in accordance with Union law on the protection of personal data. In that regard, any processing of personal data performed by ESMA in application of this Regulation should be carried out in accordance with Regulation (EU) 2018/1725.

(5) Personal data, in particular the proof of the absence of criminal records for each member of senior management of a ESG rating provider relating to money laundering, terrorist financing, provision of financial services or data services, acts of fraud or embezzlement, should be retained by that ESG rating provider and ESMA for no longer than five years after the concerned senior management has ceased to perform its function.

([1]) OJ L, 2024/3005, 12.12.2024, ELI: http://data.europa.eu/eli/reg/2024/3005/oj.

([2]) Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC (OJ L 295, 21.11.2018, p. 39, ELI: http://data.europa.eu/eli/reg/2018/1725/oj).

(6) To ensure that ESMA is able to assess compliance by ESG rating providers with the relevant framework, including the measures and safeguards to be implemented by ESG rating providers in relation to the separation of business and activities, ESG rating providers that wish to apply for authorisation to provide benchmarks in accordance with Article 16(3) of Regulation (EU) 2024/3005 at the time they apply for authorisation to operate in the Union in accordance with Article 6(1) of that Regulation should provide ESMA with additional information in that regard.

(7) Members of senior management of ESG rating providers exercise significant influence over the operations of such rating providers. It is therefore necessary to require that ESG rating providers include in their application for authorisation proof of the good repute of such members and an official certificate or equivalent evidence from each member of senior management as regards the absence of convictions for certain criminal offences. The official certificate should be sufficiently recent to provide an up-to-date level of assurance and should cover a sufficiently long period of time.

(8) Point (g) of Annex I to Regulation (EU) 2024/3005 requires that applications for authorisation should contain the number of rating analysts, employees and other persons working for the applicant who are directly involved in ESG rating activities, and their level of experience and training. In order to further specify that requirement and taking into account various types of assessment, that information should also cover the analysts and staff working to develop and review the ESG rating methodology and who implement and maintain the systems, resources and procedures necessary for ESG rating providers to comply with their obligations under Regulation (EU) 2024/3005. To streamline the application process, the information provided should be at the level of the team or group of persons performing the activities.

(9) Article 16 of Regulation (EU) 2024/3005 prohibits ESG rating providers to engage in certain activities, or requires ESG rating providers to separate such activities from their ESG rating activities. To verify whether the applicant has taken the necessary steps to ensure that the other activities or services it provides do not unduly interfere with or compromise the integrity of its ESG rating activities, applicants should provide an adequate level of information on the measures put in place in accordance with Article 16(2) and (3) of Regulation (EU) 2024/3005.

(10) To safeguard security and enhance data management and usability in light of increased digitalisation, any information submitted to ESMA in an application should be machine-readable, structured to be easily identified, recognised and extracted by a software application, and provided in a durable medium.

(11) To assist ESMA in identifying the documents that an applicant has submitted as part of the application for authorisation and registration, a unique reference number should be provided to each document.

(12) For assurance and accountability purposes, an application for authorisation or registration submitted to ESMA should include a letter signed by a member of the senior management of the applicant, attesting that the submitted information is accurate and complete to the best of that member's knowledge.

(13) Since this Regulation supplements Regulation (EU) 2024/3005, which applies from 2 July 2026, it is appropriate to align the dates of application of the two Regulations.

(14) The European Data Protection Supervisor was consulted in accordance with Article 42(1) of Regulation (EU) 2018/1725 and delivered an opinion on 5 May 2026.

(15) This Regulation is based on the draft regulatory technical standards submitted to the Commission by ESMA.

(16) ESMA has conducted open public consultations on the draft regulatory technical standards on which this Regulation is based, analysed the potential related costs and benefits and requested the advice of the Securities and Markets Stakeholder Group established in accordance with Article 37 of Regulation (EU) No 1095/2010 of the European Parliament and of the Council ([3]),

([3]) Regulation (EU) No 1095/2010 of the European Parliament and of the Council of 24 November 2010 establishing a European Supervisory Authority (European Securities and Markets Authority), amending Decision No 716/2009/EC and repealing Commission Decision 2009/77/EC (OJ L 331, 15.12.2010, p. 84, ELI: http://data.europa.eu/eli/reg/2010/1095/oj).

HAS ADOPTED THIS REGULATION:

Article 1

Application for authorisation to operate as an ESG rating provider

1. An applicant for authorisation as an Environmental, Social and Governance (ESG) rating provider shall submit to the European Securities and Markets Authority (ESMA), in addition to the information referred to in Annex I to Regulation (EU) 2024/3005, the information referred to in Annex II.

2. An ESG rating provider submitting an application for authorisation for endorsement together with an application pursuant to paragraph 1 shall, in addition to the information referred to in Annex I to Regulation (EU) 2024/3005 and the information referred to in Annex II to this Regulation, include in its application for authorisation as an ESG rating provider the information referred to in Annex IV to this Regulation.

3. An ESG rating provider lodging a request to provide benchmarks shall, in addition to the information referred to in Annex I to Regulation (EU) 2024/3005 and the information referred to in Annex II to this Regulation, include in its application for authorisation as an ESG rating provider the information referred to in Annex V to this Regulation.

Article 2

Application for recognition of an ESG rating provider established outside the Union

An applicant for recognition as an ESG rating provider established outside the Union shall submit to ESMA, in addition to the information referred to in Article 12(4) of Regulation (EU) 2024/3005, the information referred to in Annexes II and III to this Regulation.

Article 3

Format of the application

1. An applicant shall give a unique reference number to each document it submits. It shall clearly identify which specific requirement of this Regulation the submitted information refers to and which document that information is provided in.

2. Applicants shall provide ESMA with the information referred to in Annexes II, III, IV and V to this Regulation in a machine-readable format which:

(a) allows for the information to remain accessible for a period of time adequate for the purposes of the application;

(b) allows for the unchanged reproduction of the information stored.

3. An applicant shall include in its application a letter signed by a member of the applicant's senior management attesting that the submitted information is accurate and complete to the best of the member's knowledge, as of the date of that submission.

Article 4

Number of employees

Applicants for authorisation as referred to in Article 1 or applicants for recognition as referred to in Article 2 shall estimate their number of employees on a full-time equivalent basis, which shall be calculated as the total hours worked annually by all employees divided by an employee's maximum number of hours subject to compensation within a working year as specified by the applicable national law.

Article 5

Policies and procedures

Applicants for authorisation as referred to in Article 1 or applicants for recognition as referred to in Article 2 shall provide copies of the policies and procedures adopted to comply with Annex II part (j), (k), (m), Annex IV and Annex V to this Regulation.

Article 6

Entry into force and application

This Regulation shall enter into force on the day following that of its publication in the *Official Journal of the European Union*.

It shall apply from 2 July 2026.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 26 May 2026.

For the Commission
The President
Ursula VON DER LEYEN

ANNEX I

DOCUMENT REFERENCES

The information to be provided in an application for authorisation or recognition under Annexes II, III, IV and V shall be accompanied by the following table completed as appropriate:

Relevant Annex to this Regulation	Document reference number	Title of the document	Chapter, section or page of the document where the information is provided or reason why the information is not provided
…			
…			
…			
…			

ANNEX II

INFORMATION TO BE PROVIDED IN AN APPLICATION FOR AUTHORISATION OR RECOGNITION

PART A – GENERAL INFORMATION

(a) Full name of the applicant;

(b) address of the registered office of the applicant within the Union [Member State, city, street address, postal code] or address of the registered office of the applicant outside the Union [country, city, street address, postal code], as relevant;

(c) hyperlink to the applicant's website;

(d) where available, the applicant's legal entity identifier (LEI) number.

PART B – CONTACT PERSON DETAILS

(a) Name;

(b) title;

(c) address;

(d) email address;

(e) telephone number.

PART C – LEGAL STATUS

Proof of the legal status of the applicant, such as an excerpt from the relevant commercial or court register or other equivalent evidence.

PART D – OWNERSHIP STRUCTURE

(a) Articles of association of the applicant;

(b) ownership structure of the applicant, specifying:

  (i) the percentage of capital;

  (ii) nature of the holding (direct or indirect);

  (iii) percentage of the voting rights of relevant owners;

(c) a chart setting out the ownership links between the applicant, its parent undertaking(s) and its subsidiaries, with all undertakings included in the chart identified by their full legal name.

PART E – ACTIVITIES

For each undertaking included in the chart referred to in point (c) of Part D that carries out ESG rating activities or any of the activities listed in Article 16(1) of Regulation (EU) 2024/3005:

(a) the type of activity carried out, indicating whether it is an ESG rating activity or any of the activities listed in Article 16(1), of Regulation (EU) 2024/3005;

(b) where applicable, the name of the competent authority responsible for supervising the activity concerned.

PART F – SENIOR MANAGEMENT

(a) An organisational chart detailing the applicant's organisational structure, including a clear identification of the role, duties and responsibilities for each member of senior management;

(b) for each member of senior management:

  (i) name;

  (ii) place of birth;

  (iii) date of birth;

  (iv) role within the senior management of the applicant;

(v) curriculum vitae showing at least the level of qualification, experience and training;

(vi) a proof of the absence of criminal records relating to money laundering, terrorist financing, provision of financial services or data services, acts of fraud or embezzlement, through an official certificate.

For the purposes of point (b)(vi),where such a certificate is not available in the country concerned, a self-declaration of good repute and the authorisation to ESMA to request from the authorities concerned information on whether that member has been convicted of a criminal offence in connection with money laundering, terrorist financing, the provision of financial services or data services or in relation to acts of fraud or embezzlement.

PART G – STAFFING RESOURCES

(a) The number of rating analysts who are directly involved in ESG rating activities and a summary of their overall industry experience, level of training and level of seniority;

(b) excluding the staff referred to in point (a), the number of employees and other persons working for the applicant that are directly involved in ESG rating activities together with a summary of industry experience, level of training and level of seniority by area of responsibility, and that are engaged in any of the following:

(i) the development and review of methodologies;

(ii) the collection and analysis of data;

(iii) the development, implementation and maintenance of the information technology systems, resources, internal policies and procedures of the ESG rating provider necessary to comply with Regulation (EU) 2024/3005.

In order streamline the application process, the information provided should be at the level of the team or group of persons performing the activities.

PART H – EXPECTED MARKET COVERAGE

(a) The number of ESG rating products that the applicant intends to provide in the Union;

(b) for each ESG rating product that the applicant intends to provide in the Union:

(i) the name of that product;

(ii) a description of that product;

(iii) the number or expected number of rated items covered.

PART I – PROCEDURES AND METHODOLOGIES OF ESG RATINGS

(a) For each ESG rating product indicated pursuant to Part H, a description of applicable procedures and methodologies to issue ESG ratings, including information on:

(i) whether the applicant expects to use information disclosed under Regulation (EU) 2019/2088 of the European Parliament and of the Council ([1]) and Directive 2013/34/EU of the European Parliament and of the Council ([2]);

(ii) whether the applicant expects to use methodologies that are based on scientific evidence and takes into account the targets and objectives of the Paris Agreement or any other relevant international agreements;

(b) procedures for the review of ESG ratings;

(c) procedures for the review of ESG rating methodologies.

([1]) Regulation (EU) 2019/2088 of the European Parliament and of the Council of 27 November 2019 on sustainability-related disclosures in the financial services sector (OJ L 317, 9.12.2019, p. 1, ELI: http://data.europa.eu/eli/reg/2019/2088/oj).

([2]) Directive 2013/34/EU of the European Parliament and of the Council of 26 June 2013 on the annual financial statements, consolidated financial statements and related reports of certain types of undertakings, amending Directive 2006/43/EC of the European Parliament and of the Council and repealing Council Directives 78/660/EEC and 83/349/EEC (OJ L 182, 29.6.2013, p. 19, ELI: http://data.europa.eu/eli/dir/2013/34/oj).

PART J – POLICIES OR PROCEDURES TO IDENTIFY, MANAGE AND DISCLOSE CONFLICTS OF INTEREST

The policies or procedures implemented by the applicant to identify, manage and disclose any conflicts of interest as referred to in Article 15 of Regulation (EU) 2024/3005, including the following information:

(a) a description of internal reporting channels for receiving and handling information provided by persons reporting actual or potential breaches of the independence principle and of measures ensuring the protection of such persons' identity;

(b) the review and approval process for the onboarding of new clients, employee personal account dealing, external business activities and the acceptance of gifts and hospitality;

(c) the criteria to determine the remuneration of the persons referred to in Part G;

(d) the terms of reference for the management body.

PART K – OUTSOURCING ARRANGEMENTS

Where applicable, documents and information related to any existing or planned outsourcing arrangements for activities covered by Regulation (EU) 2024/3005, including:

(a) the outsourcing policy or other documents demonstrating compliance with the requirements of Annex II, point 2, of Regulation (EU) 2024/3005;

(b) a copy of any existing outsourcing agreements.

PART L – OTHER ACTIVITIES, INCLUDING EXPECTED ENDORSEMENTS

Where applicable, information about the applicant's other commercial activities, including:

(a) the name and description of any other business activities carried out by the applicant, or which the applicant intends to carry out;

(b) where applicable, the name of the competent authority responsible for supervising the activities referred to in point (a).

PART M – SPECIFIC MEASURES TO BE IMPLEMENTED BY THE APPLICANT

(a) For any of the activities referred to in Article 16(1), points (c), (d) and (f), of Regulation (EU) 2024/3005, information regarding the specific measures that the applicant has put in place in accordance with [RTS on Separation of Business];

(b) an explanation as to why the measures referred to in point (a) are deemed sufficient by the applicant.

PART N – PREVIOUS ESG RATING ACTIVITIES

Where applicable, information about previous ESG rating activities, including:

(a) any relevant licences held, indicating their periods of validity;

(b) any ESG rating products previously provided which are not indicated under Part H;

(c) the name of the legal entity under which such activities were carried out;

(d) where appliable, the name of the authority responsible for supervising such activities.

ANNEX III

SPECIFIC, ADDITIONAL INFORMATION IS TO BE PROVIDED IN AN APPLICATION FOR RECOGNITION OF ESG RATING PROVIDERS ESTABLISHED OUTSIDE THE UNION

PART A – LEGAL REPRESENTATIVE IN THE MEMBER STATE OF REFERENCE

With respect to the legal representative referred to in Article 12(3) of Regulation (EU) 2024/3005:

(a) full name;

(b) the legal entity identifier (LEI), where available;

(c) articles of incorporation, articles of association or other constitutional documents;

(d) information on whether it is supervised and the name of the supervisory authority;

(e) written confirmation of the authority of the legal representative to act on behalf of the ESG rating provider in accordance with Article 12(3) of Regulation (EU) 2024/3005;

(f) the name, title, address, email address and telephone number of a contact person within the legal representative.

PART B – INFORMATION ON COMPLIANCE MEASURES

With respect to compliance with the requirements of Regulation (EU) 2024/3005, ESG rating providers shall provide:

(a) an assessment by the legal representative of the adequacy of the measures put in place by the ESG rating provider;

(b) a description of the measures put in place by the legal representative to monitor compliance on an on-going basis.

PART C – INFORMATION ON TURNOVER

For each of the last three consecutive years:

(a) a copy of the ESG rating provider's annual financial reports, for the last three consecutive years, including individual and consolidated financial statements, where applicable;

(b) the audit reports on the annual and consolidated financial statements referred to in point (a), where those are subject to independent external audits;

(c) where no audit reports as referred to in point (b) are available, an assessment by an independent external auditor or a certification of the competent authority of the third country where the ESG rating provider is established, of the annual net turnover of all of its activities.

PART D – INFORMATION ON ESG RATINGS INTENDED TO BE DISTRIBUTED IN THE UNION

The list, in .csv format, of actual or prospective ESG ratings which at the date of application are intended for publication or distribution in the Union.

PART E – INFORMATION ON ACTIVITIES OUTSIDE THE UNION

Where applicable, with respect to the ESG rating provider's activities outside the Union:

(a) name of third country competent authority responsible for its supervision;

(b) address of that third country competent authority;

(c) activity for which the ESG rating provider is licensed or supervised;

(d) respective dates for which the ESG rating provider has been licensed or supervised.

ANNEX IV

SPECIFIC, ADDITIONAL INFORMATION IS TO BE PROVIDED IN THE CONTEXT OF THE ENDORSEMENT OF ESG RATINGS

Indication of whether the ESG rating provider is requesting authorisation to endorse ESG ratings provided by an ESG rating provider established outside the Union as referred to in Article 11(1), point (a), of Regulation (EU) 2024/3005, and where so, for each expected endorsement:

(a) the name, and where available, the legal entity identifier (LEI), of the legal entities from which the ESG ratings will be endorsed;

(b) the information required under Part H of Annex II to this Regulation for each ESG rating product to be endorsed;

(c) objective reasons for the endorsement of each ESG rating product;

(d) the measures put in place by the ESG rating provider to ensure compliance with Article 11(1) of Regulation (EU) 2024/3005.

ANNEX V

SPECIFIC, ADDITIONAL INFORMATION IS TO BE PROVIDED IN IN THE CONTEXT OF PROVISION OF BENCHMARKS

An indication of whether the ESG rating provider is requesting to be authorised to provide benchmarks in accordance with Article 16(3) of Regulation (EU) 2024/3005 and, where so:

(a) the specific measures referred to that the applicant has put in place in accordance with Article 3 of [RTS on Separation of Business];

(b) an assessment as to why the applicant deems the measures referred to in point (a) to be sufficient;

(c) information on whether the ESG Rating Provider provides or intends to provide benchmarks that pursue sustainability objectives, in particular EU Climate Transition Benchmarks as defined in Article 3, point (23a), of Regulation (EU) 2016/1011 of the European Parliament and of the Council [1], or a EU Paris-aligned Benchmark, as defined in Article 3, point (23b), of that Regulation.

[1] Regulation (EU) 2016/1011 of the European Parliament and of the Council of 8 June 2016 on indices used as benchmarks in financial instruments and financial contracts or to measure the performance of investment funds and amending Directives 2008/48/EC and 2014/17/EU and Regulation (EU) No 596/2014 (OJ L 171, 29.6.2016, p. 1, ELI: http://data.europa.eu/eli/reg/2016/1011/oj).